

24VECV06361 24VECV06361

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-07-20

Motion: PLAINTIFF/CROSS-DEFENDANT STEPHEN SAMUEL'S DEMURRER AND MOTION TO STRIKE
DEFENDANT/CROSS-PLAINTIFF'S FOURTH AMENDED CROSS- COMPLAINT

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Case Number: 24VECV06361 Hearing Date: July 20, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ABR REALTY &

DEVELOPMENT, LLC;

EVOLVE REALTY & DEVELOPMENT,

LLC; J&S REALTY & DEVELOPMENT,

LLC; ABR QOZB 1.5, LLC

Plaintiff,

vs.

METAPHOR DECOR LLC; BRYNJA MCGRADY; ANNA

CARTWRIGHT; AND

DOES

1 TO 10, INCLUSIVE,

Defendants.

CASE NO: 24VECV06361

[TENTATIVE]

ORDER RE:

PLAINTIFF/CROSS-DEFENDANT

STEPHEN

SAMUEL'S DEMURRER AND MOTION TO STRIKE DEFENDANT/CROSS-PLAINTIFF'S

FOURTH

AMENDED CROSS-

COMPLAINT

Dept. W

8:30 a.m.

July 15, 2026

[TENTATIVE] ORDER: The Court

SUSTAINS Cross-Defendant's Demurrer and Motion to Strike WITHOUT leave to amend.

Background

This

is a breach of contract case. Cross-Complainant Brynja McGrady alleges that she entered into an agreement with Cross-Defendant Stephen Samuel to provide full-service interior design, furnishing, and project coordination services for the commercial property known as The Brightly, located at 14526 W. Kittridge Street, Van Nuys, California. The scope of work included design direction, vendor coordination, furnishings, lighting, finishes, staging, and installation across approximately 198 residential units and all common areas. McGrady alleges that she fully performed her contractual obligations, including preparation of extensive design materials, coordination with vendors and contractors, and completion of all assigned phases of the project. She further alleges that Cross-Defendant accepted and benefited from her work, praised the completed design, and then refused to pay outstanding balances while bypassing

her procurement channels to avoid paying earned commissions. The SAC asserted a single cause of action for breach of contract against Cross-Defendant.

On January 20, 2026, this Court heard a Demurrer to Cross-Complainant's SACC. There, Cross-Defendant argued that Cross-Complainant had failed to allege sufficient facts to support their sole cause of action for breach of contract. The Court sustained the demurrer, but granted Cross-Complainant leave to amend.

Cross-Complainant filed their Third Amended Cross-Complaint (TACC) on February 18, 2026. On March 5, 2026, Cross-Defendant once again demurred to the same cause of action for breach of contract. On April 1, 2026, this Court once again sustained the demurrer with leave to amend.

On April 14, 2026, Cross-Complainant filed her Fourth Amended Cross-Complaint (FTACC). Now, Cross-Defendant once again demurs to Cross-Complainant's claim of breach of contract, arguing that Cross-Complainant had failed to allege sufficient facts and is uncertain.

Discussion

Cross-Defendant demurs to Cross-Complainant's claim of breach of contract. (Demurrer, p. 3:20-27.)

A demurrer tests the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (CCP §§ 422.10, 589; see, *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on the demurrer, all facts pled in the complaint are assumed to be true. (*Id.* at 994.)

i)

Demurrer

Cross-Defendant argues that Cross-Complainant has failed to establish that Cross-Defendant was a party to the contract, because the terms of the contract contradict the pleadings. (Demurrer, p. 4:7-12.)

A written contract may be pleaded either by its terms-set out verbatim in the complaint or a copy of the contract attached to the complaint and

incorporated therein by reference-or by its legal effect. (Holcomb v. Wells Fargo Bank, NA (2007) 155 Cal. App. 4th 490, 501.) In order to plead a contract by its legal effect, plaintiff must "allege the substance of its relevant terms." (McKell v. Washington Mutual, Inc. (2006) 142 Cal. App. 4th 1457, 1489.)

In the FTACC, Cross-Complainant alleges that, "On or about July 28, 2023, McGrady and Samuel entered into a written agreement entitled "Metaphor Decor LLC Scope of Work" for interior design services." (FTACC ¶ 4.) Thus, Cross-Complainant has alleged that Cross-defendant Stephen Samuel was a party to this contract. However, Cross-Complainant also alleges that, "[a] true and correct copy of the written agreement is attached hereto as Exhibit A and incorporated herein by this reference." (Ibid.) Notably, in this attached exhibit, Cross-Complainant is not named as a party to the contract. (FTACC, Ex. A, p. 2.) Thus, the written contract contradicts the allegations in the complaint.

Under California case law, "when there is a conflict between a complaint's allegations and exhibits that is direct and indisputable, the exhibit will prevail. For example, where a complaint alleges that a written contract contains certain text, but the contract is attached to the complaint and does not contain the alleged text, then the assertion in the complaint can be disregarded. There, the allegation in the complaint is directly and plainly contradicted by the exhibit. Moreover, that application does not require the court to assume the underlying truth of any fact asserted in an exhibit. However, if the contrary exhibit statement on which defendants rely conveys a legal conclusion (rather than a factual one) or the exhibit statement is ambiguous, it cannot support a demurrer." (Panterra GP, Inc. v. Superior Court (2022) 74 Cal.App.5th 697, fn. 13 [citing Manufactured Homes, Inc. v. Liebert (2008) 162 Cal.App.4th 68, 83].)

Here, Cross-Defendant argues that there is a direct dispute between the contract and the allegations, as the contract specifically does not mention Cross-Defendant as a party. Thus, under Panterra, Cross-Complainant's allegation can be disregarded.

In Opposition, Cross-Complainant notes that the contract identifies the

other party to the contract as “CLIENT”, and therefore there is a factual dispute over who qualifies as “client”, meaning this issue cannot be resolved on demurrer. The Court is not convinced. As explained above, “[a] written contract may be pleaded either by its terms-set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference-or by its legal effect.” (Holcomb, supra, at 501.) Here, Cross-Complainant attempts to allege the terms of this contract by providing a copy. (See, FTACC, Ex. A.) Thus, this Court must look to the text of that agreement. Based on the plain text of this copy, Cross-Defendant was not a party to the contract. Thus, Cross-Complainant has failed to allege this threshold element of their claim.

The Court notes that there are ways for non-signatories to be bound to the terms of a contract, such as assignment, or alter ego. However, Cross-Complainant does not allege facts to support any of these alternative theories. Cross-Complainant only alleges that:

“Samuel is personally liable under the written agreement. Samuel, in his individual capacity, utilized the same written Metaphor Decor agreement on this project and prior projects with McGrady. On each occasion, Samuel personally directed the scope of work, personally approved invoices submitted by McGrady, and personally made payments under the same contractual terms. This consistent course of dealing established a mutual understanding between the parties that Samuel personally undertook responsibility for payment of all amounts due under the agreement.” (FTACC ¶ 5.)

Notably, this is not an allegation that Cross-Defendant Samuel is a non-signatory bound by the terms of this contract. Instead, it is a complete shift in Cross-Complainant’s underlying contract theory. Initially, Cross-Complainant alleged that the contract in this case was an express written agreement. (FTACC ¶¶ 3, 4, 5, 6.) This course of dealing allegation, by contrast, is applicable to an implied contract. (See, CIV § 1621.) Under California case law, “an action based on an implied-in-fact or quasi-contract cannot lie where there exists between the parties a valid express contract covering the same subject matter.” (Lance Camper Manufacturing Corp. v. Republic Indemnity Co. (1996) 44 Cal.App.4th 194, 203 [citing Wal-Noon Corp. v. Hill (1975) 45 Cal. App. 3d 605, 613].) Thus, this allegation does not support Cross-Complainant’s claim – it directly contradicts it. For these reasons, the Court does not find that this allegation provides factual support for the assertion that Cross-Defendant was a party to the underlying contract.

Additionally, Cross-Complainant makes numerous references to attachments to the FTACC. (Opp. p. 9:8-17.) According to the Opposition, these attachments show Cross-Defendant stating things such as, “send the contract so I can review with my lawyer hat.” (Opp. p. 9:9-10.) Cross-Complainant asserts that this shows that Cross-Defendant was a party to the contract. However, the Court can find no such attachments in the copy of the FTACC filed on April 14, 2026. (See generally, FTACC.)

Finally, Cross-Complainant makes multiple assertions about what California law allows in their Opposition. (See e.g., Opp. p. 10:20-21). However, Cross-Complainant does not cite any legal authority in support of their Opposition. (See generally, Opp.) Thus, Cross-Complainant’s legal assertions carry little weight.

Ultimately, the Court concludes that Cross-Complainant has failed to properly allege a contractual relationship between themselves and Cross-Defendant. For this reason, the Court SUSTAINS the demurrer to the breach of contract cause of action in the Fourth Amended Cross-Complaint.

ii)

Leave to Amend

Next, the Court must determine whether leave to amend is appropriate.

“Although leave to amend is to be liberally granted, it is not error to deny leave to amend when there is no ‘reasonable possibility’ that the plaintiff can state a cause of action.” (Tola v.

Bryant (2022) 76 Cal.App.5th

746, 755 [citing Aubry v.

Tri-City Hospital Dist. (1992) 2 Cal.4th 962,

967].) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Goodman v.

Kennedy (1976) 18 Cal.3d 335,

348.; Lewis v.

YouTube, LLC (2015) 244 Cal.App.4th

118, 226.)

Here, the Court’s tentative conclusion is that there is no reasonable possibility Cross-Complainant can state a claim for breach of contract.

Cross-Complainant's breach of contract claim against Cross-Defendant Stephen Samuel has been the subject of three demurrers. Each time, this Court sustained the demurrer but granted leave to amend. (Minute Order, 10/7/25; Minute Order, 1/20/26; Minute Order, 4/1/26.) The fact that Cross-Complainant has yet to properly allege this claim suggests they are unable to do so. Thus, the Court DENIES leave to amend.

iii)

Motion to Strike

Cross-Defendant also nominally moves to strike, "improper and unsupported damage allegations pursuant to Code of Civil Procedure sections 435 and 436." (Demurrer, p. 2:3-4.) However, Cross-Defendant does not engage in any analysis on this point. (See generally, Demurrer.) Additionally, given that the Court has sustained this demurrer without leave to amend as to the only cause of action, the issue of damages pleading is moot.

Conclusion

The Court SUSTAINS Cross-Defendant's Demurrer and Motion to Strike WITHOUT leave to amend.

IT

IS SO ORDERED, Cross-Defendant TO GIVE NOTICE.

July 15, 2026

Judge of the Superior Court